

EX 1190/2023

Counsel for DHR has filed process memo for issuance of cause notice to JDR at the same address as mentioned in the cause title despite office endorsement shows that 'JDR has left the address'.

The process filed today is rejected.

It appears that DHR is not aware of the correct address of the JDR.

In the light of the judgment of Apex court in Periyammal through L/Rs Vs Rajamani in Civil Appeal No. 3640-3642/2025 wherein the trial court have been directed to dispose of E.P. within a period of 6 months.

Hence this court of the opinion that, the E.P. is required to be closed, with a liberty to the DHR to file fresh E.P. after tracing the address of JDR

Accordingly, the above E.P. is closed with liberty to file fresh Petition after tracing the address of JDR.

XLI Addl. CC & SJ